

24LBCV01808 24LBCV01808

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 24LBCV01808 Hearing Date: July 28, 2026 Dept: S27

Background

Song

Beverly Warranty Act action. On August

23, 2025, Plaintiffs Allison Hedgpeth and Glenn Bronson Hedgpeth filed a complaint against American Honda Motor Co., Inc. alleging (1) violation of Civil Code section 1793.2(d); (2) violation of Civil Code section 1793.2(b); (3) violation of Civil Code section 1793.2(a)(3); (4) breach of the implied warranty of merchantability (Civ. Code §§1791.1, 1794 and 1795.5).

Trial

in this case commenced on December 5, 2025.

The jury returned a verdict finding no liability on December 8, 2025. Judgment was entered in

Defendant's favor on January 6, 2026.

The judgment included an award of costs.

On

January 29, 2026, Defendant filed a memorandum of costs. On February 13, 2026, Plaintiffs filed a Motion to Strike and/or Tax Defendant's Fees and Costs.

Legal Standard

To

obtain costs, the prevailing party must file and serve a memorandum of costs, which "must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Ct. Rule 3.1700(a).)

If

the items on the face of the cost memorandum appear to be proper charges, the verified cost memorandum is prima facie evidence of their propriety, and it is the challenging party who bears the burden to show the costs were not reasonable or necessary. (*Ladas v.*

California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) The only identifiable requirement for a memo of costs is that it set forth the costs claimed and be verified. (Cal. Rules of Ct. Rule 3.1700(a)(1).)

The

mere filing of a motion to tax costs may be a proper objection to an item if the necessity of that item appears doubtful, does not appear to be proper on its face (*Nelson, supra*, 72 Cal.App.4th at 131), or presents a legal question (*Fennessy v. Deleuw-Cather Corporation* (1990) 218 Cal.App.3d 1192, 1195–1996 (motion to tax questioning entitlement to deposition costs incurred by all six defendants represented by the same counsel was sufficient to place the cost at issue without additional declarations or affidavits).)

However,

if section 1033.5 expressly allows the particular item and it appears proper on its face, the burden is on the objecting party to show the costs to be unnecessary or unreasonable. (*Nelson, supra*, 72 Cal.App.4th at 131.) “The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face.

If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (*Id.*)

If

costs are properly placed at issue, the burden of proof shifts to the party seeking costs to justify them by providing evidence and supporting documentation that the costs were reasonable and necessarily incurred. (*Ladas v. California State Auto. Assn., supra*, 19 Cal.App.4th at 774; *Jones, supra*, 63 Cal.App.4th at 1267.)

Analysis

Plaintiffs

move to strike the following costs: (1) Item 4 Deposition Costs in the amount of \$2,008.10; (2) Item 8 Witness Fees in the amount of \$3,870; (3) Item 9

Court-ordered transcripts in the amount of \$2,967.60; and (4) Item 15 "Other" costs in the amount of \$3,158.17 or \$3,259.37.

Plaintiffs

argue Defendant fails to provide invoices or receipts in support of the disputed cost items. Plaintiffs argues

Defendant fails to satisfy its burden of demonstrating that the costs are reasonable and necessary under Code of Civil Procedure section 1033.5.

Defendant's

verified memorandum of costs is prima facie evidence of the reasonableness and necessity of the costs listed on the memorandum of costs. Defendant was not required to attach copies of bills, invoices, statements, or other documentation to the memorandum (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267), but it was required to provide enough detail in the memorandum to determine whether the cost sought is statutorily awardable (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 132.)

Defendant

provides sufficient information in Item 4 to determine whether the deposition costs are recoverable. Deposition costs are expressly allowed for in section 1033.5 subdivision (a)(3). Item 4 lists the deposition costs for Plaintiffs' depositions. The deposition costs are proper on their face and Plaintiffs fail to raise any issue with the deposition costs other than lack of receipts and invoices.

Defendant's

Item 8 fails to provide sufficient information to determine whether the costs are statutorily awardable. The information provided is also ambiguous.

Defendant identifies the experts as Bob Pascarella and Bob Pascarella Technical Assistants. Defendant lists

the expert fees in Item 8(b) of the Memorandum of Costs (Worksheet), which expressly states "per Code of Civil Procedure section 998." (Memorandum of Costs filed on January 29, 2026, Memorandum of Costs, Item 8(b).) Defendant

provides the identity of the experts, the amount of the expert fees and the statutory basis for the fees. This is sufficient to establish that they are statutorily awardable.

Defendant

chose to submit invoices in support of Item 8.

The only invoice submitted for Bob Pascarella is for \$976. Plaintiffs also claim an invoice in the amount of \$941.40 for expert James Jongkind.

The requested amount of \$3,870 is unsupported and doubtful on the face of the memorandum. Defendant did not oppose. Plaintiffs' motion to tax is granted as to Item 8 in the amount of \$1,952.60 is granted.

Defendant

provides sufficient information in support of Item 9 for court-ordered transcripts in the amount of \$2,967.60 to determine whether the costs are statutorily awardable. The transcript

costs are for the depositions of its experts Pascarella and Jongkind. (Memorandum of Costs filed on January 29, 2026, Memorandum of Costs, Item 9.) These costs are improper on their face, as

they are not court-ordered transcripts but expert deposition transcripts. Defendant did not file an opposition. Plaintiff's motion to tax is granted as to the

entirety of Item 9.

Defendant

provides insufficient information for the Court to determine whether the entirety of Item 15 for "other" costs are recoverable. Defendant includes hotel fees and rental car fees but provides no invoices. On their

face, the reasonable necessity of hotel and rental car fees is doubtful. Defendant did not file an opposition explaining these costs are reasonably necessary to the litigation.

In

addition, parking is listed as one of the "other" costs. No other information is provided to establish the nature of the parking costs. "Routine

expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation." (Ladas, supra, 19 Cal.App.4th at 775–776 (local travel expenses, including parking fees, cab fares and "mileage/parking" for attorneys and paralegals were not necessary to the litigation as opposed to being merely convenient.)

Defendant

also included the cost of in-house black and white printing and lunch. It is unclear what this "in house" printing was and whether they were essentially photocopies that were not exhibits. Photocopying charges that are not for exhibits are expressly not recoverable under Code of Civil Procedure section 1033.5(b)(3).

Defendant

also includes the costs of lunches during trial, which were not reasonably necessary to the litigation. "Nor can meal expenses be justified as 'necessary to conduct the litigation' since attorneys have to eat, whether they are conducting litigation or not." (Ladas, supra, 19 Cal.App.4th at 774 (attorney lunches during depositions were not recoverable expenses as they were not expressly recoverable nor were they reasonably necessary to litigation.)

Plaintiffs

also call into question the reasonable necessity of pulling two Carfax Reports on the same vehicle. Defendant also lists two different totals for Item 15 on the memorandum and worksheet (\$3,158.17) and on the attachment to the Worksheet (\$3,259.37). Defendant did not file an opposition explaining either of these issues.

Based

on the listed expenses, Defendant's "other" costs are not recoverable because they were not reasonably necessary to the litigation. Defendant did not file an opposition. Plaintiffs' motion to tax Item 15 in its entirety is granted.

Plaintiffs'

motion to strike and/or tax Defendant's costs is denied as to Item 4, granted as to Item 8 in the amount of \$1,952.60 and granted as to the entirety of Items 9 and 15.